IN THE NATIONAL COMPANY LAW TRIBUNAL, DIVISION BENCH - II, CHENNAI

CA/(CAA)/16-20(CHE)/2021

Under Sections 230 to 232 of the Companies Act, 2013

In the matter of *Scheme of Amalgamation*

M/s. PRINCE HOLDINGS (MADRAS) PRIVATE LIMITED
(First Transferor Company)

And

M/s. ANNA INVESTMENTS PRIVATE LIMITED
(Second Transferor Company)

And

M/s. RUPA HOLDINGS PRIVATE LIMITED
(Third Transferor Company)

And

M/s. THAMBI INVESTMENTS PRIVATE LIMITED
(Fourth Transferor Company)

And

M/s.EWS FINANCE AND INVESTMENTS PRIVATE LIMITED
(Transferee Company)

Order Pronounced 1st September 2021

CORAM

R. SUCHARITHA, MEMBER (JUDICIAL)
ANIL KUMAR B, MEMBER (TECHNICAL)

For Applicant(s): T.K. Bhaskar, Advocate

ORDER

Per: **R.SUCHARITHA, MEMBER (JUDICIAL)**

This is an application filed by the Applicant Companies, namely M/s. Prince Holdings (Madras) Private Limited *(hereinafter referred to as "Transferor Company – 1")* and M/s. Anna Investments private Limited *(hereinafter referred to as "Transferor Company – 2")* and M/s. Rupa Holdings Private Limited *(hereinafter referred to as "Transferor Company – 3")* and M/s. Thambi Investments Private Limited *(hereinafter referred to as "Transferor Company – 4")* and M/s. EWS Finance And Investments Private Limited *(hereinafter referred to as "Transferee Company")* under section 230-232 of Companies Act, 2013, and other applicable provisions of the Companies Act, 2013 read with Companies (Compromises, Arrangements and Amalgamations) Rules, 2016 in relation to the Scheme of Amalgamation (hereinafter referred to as the "SCHEME") proposed by aforesaid Companies. The said Scheme is also annexed along with the CA(CAA)/16-20(CHE)/2021.

2. The Applicant Companies in this Company Application have sought for the following reliefs:

(a) *Dispensing the Meeting of Equity Shareholders of the Transferor companies;*

(b) *Necessary Directions for conducting the meeting of Equity shareholders of Transferee company;*

(b) *Dispensing the Meeting of Optionally Convertible Redeemable Preference Shareholders of the Transferor and Transferee Companies;*

(c) *Dispensing the Meeting of Non-Cumulative Redeemable Preference Shareholders of the Transferor Companies;*

(d) *Dispensing the Meeting of Compulsorily Convertible Debenture holders of the First, Second and third Transferor Companies and Transferee Company;*

(f) *Dispensing the Meeting of Secured Creditors of the First Transferor Company;*

(e) *Dispensing the Meeting of Unsecured Creditors of the Transferor Companies and Transferee Company;*

3. An affidavit in support of the above application is sworn for and behalf of the Transferor Companies and the same has been filed by Ms. Chitra Srinivasan in the capacity as Director of the Transferor Companies along with the application and it is also represented that the Registered office of the Applicant Company is situated within the territorial jurisdiction of the Bench of this Tribunal and falling within the purview of Registrar of Companies, Chennai.

4. An affidavit in support of the above application is sworn for and behalf of the Transferee Companies and the same has been filed by Ms. Chitra Srinivasan in the capacity as Authorised Signatory of the Transferee Companies along with the application and it is also represented that the Registered office of the Applicant Company is situated within the territorial jurisdiction of the Bench of

this Tribunal and falling within the purview of Registrar of Companies, Chennai.

5. **M/S. PRINCE HOLDINGS (MADRAS) PRIVATE LIMITED (TRANSFEROR COMPANY – 1)**

(i) There are 2 (two) Equity Shareholders and the certificate issued by the Chartered Accountants to this effect is placed at page 175 of the typed set filed with the application and also the consent by way of Affidavits given by both the Equity Shareholders are placed at page 176 to 181 and sought for dispensation with holding of meeting.

(ii) There are 4 (Four) 0.001% Optionally Convertible Redeemable Preference Shareholders and the certificate issued by the Chartered Accountants to this effect is placed at page 182 of the typed set filed with the application and consent by way of Affidavits given by all the four are placed at page 183 to 212 and sought for dispensation with holding of meeting.

(iii) There is 1 (one) 10% Non-Cumulative Redeemable Preference Shareholder and the certificate issued by the Chartered Accountants to this effect is placed at page 213 of the typed set filed with the application and consent by way of Affidavit given by the sole Preference Shareholder is placed at page 214 to 216 and sought for dispensation with holding of meeting.

(iv) There are 3 (three) Compulsorily Convertible Debenture holders and the certificate issued by the Chartered Accountants to this effect is placed at page 222 of the typed

set filed with the application and the consent by way of Affidavits given by the all the three Debenture holders are placed at page 223 to 244 and sought for dispensation with holding of meeting.

(v) There is 1 Secured Creditor and the certificate issued by the Chartered Accountants to this effect is placed at page 245 of the typed set filed with the application and the consent by way of Affidavit given by the sole unsecured Creditor is placed at page 246 to 248 and sought for dispensation with holding of meeting.

(vi) There are 5 Unsecured Creditors and the certificate issued by the Chartered Accountants to this effect is placed at page 250 of the typed set filed with the application and the consents by way of Affidavits given by all the 5 Unsecured Creditors are placed at page 251 to 278 and sought for dispensation with holding of meeting.

6. **ANNA INVESTMENTS PRIVATE LIMITED (TRANSFEROR COMPANY – 2)**

(i) There are 2 (two) Equity Shareholders and the certificate issued by the Chartered Accountants to this effect is placed at page 143 of the typed set filed with the application and the consents by way of Affidavits given by both the Shareholders are placed at page 144 to 146 and sought for dispensation with holding of meeting.

(ii) There are 3 (three) 0.001% Optionally Convertible Redeemable Preference Shareholder and the certificate issued by the Chartered Accountants to this effect is placed at page

150 of the typed set filed with the application and consent by way of Affidavits given by all the three Preference Shareholders are placed at page 151 to 153 and sought for dispensation with holding of meeting.

(iii) There is 1 (one) 10% Non-Cumulative Redeemable Preference Shareholder and the certificate issued by the Chartered Accountants to this effect is placed at page 172 of the typed set filed with the application and the consent by way of Affidavit given by the sole shareholder is placed at page 173 to 175 and sought for dispensation with holding of meeting.

(iv) There are 2 (two) Compulsorily Convertible Debenture holders and the certificate issued by the Chartered Accountants to this effect is placed at page 182 of the typed set filed with the application and consents by way of Affidavits given by both the Debenture Holders are placed at page 183 to 185 and sought for dispensation with holding of meeting.

(v) There is NIL Secured Creditor and the certificate issued by the Chartered Accountant to this effect is placed at page 196 of the typed set filed along with the Application.

(vi) There are 3 (three) Unsecured Creditors and the certificate issued by the Chartered Accountants to this effect is placed at page 197 of the typed set filed with the application and consents by way of Affidavits given by all the three Unsecured Creditors are placed at page 198 to 209 and sought for dispensation with holding of meeting.

7. **RUPA HOLDINGS PRIVATE LIMITED (TRANSFEROR COMPANY – 3)**

(i) There are 2 (two) Equity Shareholders and the certificate issued by the Chartered Accountants to this effect is placed at page 142 of the typed set filed with the application and the consents by way of Affidavits given by both the Equity Shareholders are placed at page 143 to 148 and sought for dispensation with holding of meeting.

(ii) There are 3 (three) 0.001% Optionally Convertible Redeemable Preference Shareholders and the certificate issued by the Chartered Accountants to this effect is placed at page 150 of the typed set filed with the application and consents by way of Affidavits given by all the three Preference Shareholders are placed at page 151 to 153 and sought for dispensation with holding of meeting.

(iii) There is 1 (one) 10% Non-Cumulative Redeemable Preference Shareholder and the certificate issued by the Chartered Accountants to this effect is placed at page 171 of the typed set filed with the application and the consent by way of Affidavit given by the sole Shareholder is placed at page 172 to 174 and sought for dispensation with holding of meeting.

(iv) There are 2 (two) Compulsorily Convertible Debenture holders and the certificate issued by the Chartered Accountants to this effect is placed at page 175 of the typed set filed with the application and the consent by way of Affidavits given by both the Debenture Holders are placed at

page 176 to 178 and sought for dispensation with holding of meeting.

(v) There is NIL Secured Creditor and the certificate issued by the Chartered Accountant to this effect is placed at page 202 of the typed set filed along with the Application.

(vi) There are 4 (four) Unsecured Creditors and the certificate issued by the Chartered Accountants to this effect is placed at page 203 of the typed set filed with the application and the consents by way of Affidavits given by all the three Unsecured Creditors are placed at page 204 to 224 and sought for dispensation with holding of meeting.

8. **M/S. THAMBI INVESTMENTS PRIVATE LIMITED (TRANSFEROR COMPANY – 4)**

(i) There are 2 (two) Equity Shareholders and the certificate issued by the Chartered Accountants to this effect is placed at page 126 of the typed set filed with the application and the consents by way of Affidavits given by both the Equity Shareholders are placed at page 127 to 132 and sought for dispensation with holding of meeting.

(ii) There is 1 (one) 0.001% Optionally Convertible Redeemable Preference Shareholder and the certificate issued by the Chartered Accountants to this effect is placed at page 133 of the typed set filed with the application and the consent by way of Affidavit given the sole Preference Shareholder is placed at page 134 to 138 and sought for dispensation with holding of meeting.

(iii) There is 1 (one) 10% Non-Cumulative Redeemable Preference Shareholder and the certificate issued by the Chartered Accountants to this effect is placed at page 139 of the typed set filed with the application and the consent by way of Affidavit given by the sole shareholder is placed at page 173 to 175 and sought for dispensation with holding of meeting.

(iv) There is NIL Secured Creditor and the certificate issued by the Chartered Accountant to this effect is placed at page 149 of the typed set filed along with the Application.

(v) There is 1 (one) Unsecured Creditor and the certificate issued by the Chartered Accountants to this effect is placed at page 150 of the typed set filed with the application and the consent by way of Affidavit given by the sole unsecured creditor is placed at page 151 to 152 and sought for dispensation with holding of meeting.

9. **M/s. EWS FINANCE AND INVESTMENTS PRIVATE LIMITED (TRANSFEREE COMPANY)**

(i) There are 7 (seven) Equity Shareholders and the certificate issued by the Chartered Accountants to this effect is placed at page 167 of the typed set filed with the application and seek necessary directions for convening the meeting of Equity Shareholders of the Transferee company to obtain their approvals for the Scheme of Amalgamation.

(ii) There are 3 (three) 0.001% Optionally Convertible Redeemable Preference Shareholders and the certificate issued by the Chartered Accountants to this effect is placed at page 168 of the typed set filed with the application and the consents by way of Affidavits given by all of them are placed

at page 169 to 188 and sought for dispensation with holding of meeting.

(iii) There are 3 (three) Compulsorily Convertible Debenture holders and the certificate issued by the Chartered Accountants to this effect is placed at page 189 of the typed set filed with the application and the consents by way of Affidavits given by all of them are placed at page 190 to 209 and sought for dispensation with holding of meeting.

(iv) There is NIL Secured Creditor and the certificate issued by the Chartered Accountant to this effect is placed at page 211 of the typed set filed along with the Application.

(v) There is 1 (one) Unsecured Creditor and the certificate issued by the Chartered Accountants to this effect is placed at page 212 of the typed set filed with the application and the consent by way of Affidavit given by sole Unsecured Creditor is placed at page 213 to 214 and sought for dispensation with holding of meeting.

10. We have perused the application duly supported by Affidavits and the connected documents / papers filed therewith including the Scheme contemplated between the Applicant companies.

11. From the certificate of incorporation filed, it is evident that Transferor Company – 1, is a Private limited company incorporated under the provisions of Companies Act, 1956 on 07.05.1993. The Authorized Share Capital of the First Transferor Company is ₹105,00,00,000/- (One Hundred and Five Crore only) consisting of

10,000 Equity Shares of Rs.10/- each , 9,99,000 **10%** Non-Cumulative Redeemable preference Shares of Rs.100/- each, 9,50,00,000 **0.001%**Optionally Convertible Redeemable Preference Shares of Rs.10/- each. The Issued, Subscribed and Paid-up Capital of the First Transferor Company is Rs. **₹90,76,99,720**/- (Rupees Ninety Crore seventy six Lakh Ninety Nine Thousand Seven Hundred and Twenty Only) consisting of 200 Equity Shares of Rs.10/- each, 3,56,300 **10%** Non-Cumulative Redeemable Preference Shares of Rs.100/- each, 8,72,06,772 **0.001%** optionally Convertible Redeemable Preference Shares of Rs.10/- each

12. From the certificate of incorporation filed, it is evident that Transferor Company – 2, is a Private limited company incorporated under the provisions of Companies Act, 1956 on 08.07.1994. The Authorized Share Capital of the Second Transferor Company is ₹48,00,00,000/- (Forty Eight Crore only) consisting of 5,00,000 Equity Shares of Rs.10/- each, 7,50,000 **10%** Non-Cumulative Redeemable preference Shares of Rs.100/- each, 4,00,00,000 **0.001%**Optionally Convertible Redeemable Preference Shares of Rs.10/- each. The Issued, Subscribed and Paid-up Capital of the Second Transferor Company is Rs. **₹41,38,25,140**/- (Rupees Forty One Crore Thirty Eight Lakh Twenty Five Thousand One Hundred and Forty Only) consisting of 1600 Equity Shares of Rs.10/- each, 5,75,780 **10%** Non-Cumulative Redeemable Preference Shares of

Rs.100/- each, 3,56,23,114 **0.001%** optionally Convertible Redeemable Preference Shares of Rs.10/- each.

13. From the certificate of incorporation filed, it is evident that Transferor Company – 3, is a Private limited company incorporated under the provisions of Companies Act, 1956 on 07.05.1993. The Authorized Share Capital of the Third Transferor Company is ₹2,00,00,000/- (Two Crores only) consisting of 10,000 Equity Shares of Rs.10/- each 49,000 **10%** Non-Cumulative Redeemable preference Shares of Rs.100/- each, 15,00,000 **0.001%** Optionally Convertible Redeemable Preference Shares of Rs.10/- each. The Issued, Subscribed and Paid-up Capital of the Third Transferor Company is Rs. **₹1,69,47,910**/- (Rupees One Crore Sixty Nine Lakh Forty Seven Thousand Nine Hundred and Ten Only) consisting of 1000 Equity Shares of Rs.10/- each, 47,000 **10%** Non-Cumulative Redeemable Preference Shares of Rs.100/- each, 12,23,791 **0.001%** optionally Convertible Redeemable Preference Shares of Rs.10/- each.

14. From the certificate of incorporation filed, it is evident that Transferor Company – 4, is a Private limited company incorporated under the provisions of Companies Act, 1956 on 08.07.1994. The Authorized Share Capital of the Fourth Transferor Company is ₹10,00,00,000/- (Ten Crore only) consisting of 5,00,000 Equity

Shares of Rs.10/- each 7,50,000 **10%** Non-Cumulative Redeemable preference Shares of Rs.100/- each, 20,00,000 **0.001%** Optionally Convertible Redeemable Preference Shares of Rs.10/- each. The Issued, Subscribed and Paid-up Capital of the Fourth Transferor Company is Rs. **₹7,15,57,890**/- (Rupees Seven Crores Fifteen Lakh Fifty Seven Thousand Eight Hundred and Ninety Only) consisting of 1600 Equity Shares of Rs.10/- each, 6,13,560 **10%** Non-Cumulative Redeemable Preference Shares of Rs.100/- each, 10,18,589 **0.001%** optionally Convertible Redeemable Preference Shares of Rs.10/- each.

15. From the certificate of incorporation filed, it is evident that the Transferee Company, is a Private limited company incorporated under the provisions of Companies Act, 1956 on 01.03.1990. The Authorized Share Capital of the Transferee Company is ₹20,00,00,000/- (Twenty Crore only) consisting of 50,00,000 Equity Shares of Rs.10/- each, 1,50,00,000 **0.001%** Optionally Convertible Redeemable Preference Shares of Rs.10/- each. The Issued, Subscribed and Paid-up Capital of the Transferee Company is Rs. **₹10,16,79,800**/- (Rupees Ten Crore Sixteen Lakh Seventy Nine Thousand Eight Hundred Only) consisting of 6,34,500Equity Shares of Rs.10/- each, 95,33,480 **0.001%** optionally Convertible Redeemable Preference Shares of Rs.10/- each.

16. The Applicant Companies have filed its Memorandum and Articles of Association *inter alia* delineating its object clauses as well as their last available Audited Annual Accounts for the year ended 31.03.2020 and Unaudited Financial Statements up to 31.12.2020.

17. The Board of Directors of the Applicant Companies and Transferee company vide meeting held on 18th January 2021 have unanimously approved the proposed Scheme as contemplated above and copies of resolutions passed thereon have been placed on record by the Transferor and Transferee companies.

18. The Appointed date as specified in the Scheme is 1st July 2020.

19. The Statutory Auditors of the Transferor and Transferee Companies have examined the Scheme in terms of provisions of Sec. 232 of Companies Act, 2013 and the rules made thereunder and certified that the Accounting Standards are in compliance with Section 133 of the Companies Act, 2013. The Certificate of the Statutory Auditors issued in this regard is placed of the typed set filed along with the Application.

20. Taking into consideration the application filed by the Applicant Company and the documents filed therewith as well as the position

of law, this Tribunal propose to issue the following directions as follows:

A) IN RELATION TO THE FIRST TRANSFEROR COMPANY:

(i) With respect to Equity shareholders:

Since it is represented by the Transferor Company – 1 that there are 2 Equity Shareholders in the Company whose consents by way of Affidavits have been obtained and are placed on record, the necessity of convening and holding a meeting to consider and if thought fit, for the approval of the scheme is *dispensed with.*

(ii) With respect to Optionally Convertible Redeemable Preference Shareholders:

Since it is represented by the Transferor Company – 1 that there are 4 Optionally Convertible Redeemable Preference Shareholders in the Company whose consents by way of Affidavits have been obtained and are placed on record, the necessity of convening and holding a meeting to consider and if thought fit, for the approval of the scheme is *dispensed with.*

(iii) With respect to Non-Cumulative Redeemable Preference Shareholders:

Since it is represented by the Transferor Company – 1 that there is 1 Non-Cumulative Redeemable Preference Shareholder in the Company whose consent by way of Affidavits has been obtained and is placed on record, the necessity of convening and holding a meeting to consider and

if thought fit, for the approval of the scheme is *dispensed with*.

(iv) **With respect to Compulsorily Convertible Debenture holders:**

Since it is represented by the Transferor Company – 1 that there are 3 Compulsorily Convertible Debenture holders in the Company whose consents by way of Affidavits have been obtained and are placed on record, the necessity of convening and holding a meeting to consider and if thought fit, for the approval of the scheme is *dispensed with*.

(v) **With respect to Secured Creditors:**

Since it is represented by the Transferor Company – 1 that there is 1 Secured Creditor in the Company whose consent by way of Affidavits has been obtained and is placed on record, the necessity of convening and holding a meeting to consider and if thought fit, for the approval of the scheme is *dispensed with.*

(vi) **With respect to Unsecured Creditors:**

Since it is represented by the Transferor Company – 1 that there are 5 Unsecured Creditors in the Company whose consents by way of Affidavits have been obtained and are placed on record, the necessity of convening and holding a meeting to consider and if thought fit, for the approval of the scheme is *dispensed with.*

B) IN RELATION TO THE SECOND TRANSFEROR COMPANY:

(i) With respect to Equity shareholders:

Since it is represented by the Transferor Company – 2 that there are 2 Equity Shareholders in the Company whose consents by way of Affidavits have been obtained and are placed on record, the necessity of convening and holding a meeting to consider and if thought fit, for the approval of the scheme is *dispensed with.*

(ii) With respect to Optionally Convertible Redeemable Preference Shareholders:

Since it is represented by the Transferor Company – 2 that there are 3 Optionally Convertible Redeemable Preference Shareholders in the Company whose consents by way of Affidavits have been obtained and are placed on record, the necessity of convening and holding a meeting to consider and if thought fit, for the approval of the scheme is *dispensed with.*

(iii) With respect to Non-Cumulative Redeemable Preference Shareholders:

Since it is represented by the Transferor Company – 2 that there is 1 Non-Cumulative Redeemable Preference Shareholder in the Company whose consent by way of Affidavits has been obtained and is placed on record, the necessity of convening and holding a meeting to consider and if thought fit, for the approval of the scheme is dispensed with.

(iv) **With respect to Compulsorily Convertible Debenture holders:**

Since it is represented by the Transferor Company – 2 that there are 2 Compulsorily Convertible Debenture holders in the Company whose consents by way of Affidavits have been obtained and are placed on record, the necessity of convening and holding a meeting to consider and if thought fit, for the approval of the scheme is dispensed with.

(v) **With respect to Secured Creditors:**

It is represented by the Transferor Company – 2 that there are NIL Secured and hence the necessity of convening a meeting does not arise.

(vi) **With respect to Unsecured Creditors:**

Since it is represented by the Transferor Company – 2 that there are 3 Unsecured Creditors in the Company whose consents by way of Affidavits have been obtained and are placed on record, the necessity of convening and holding a meeting to consider and if thought fit, for the approval of the scheme is *dispensed with.*

C) IN RELATION TO THE THIRD TRANSFEROR COMPANY:

(i) **With respect to Equity shareholders:**

Since it is represented by the Transferor Company – 3 that there are 2 Equity Shareholders in the Company whose consents by way of Affidavits have been obtained and are placed on record, the necessity of convening and holding a meeting to consider and if thought fit, for the approval of the scheme is *dispensed with.*

(ii) **With respect to Optionally Convertible Redeemable Preference Shareholders:**

Since it is represented by the Transferor Company – 3 that there are 3 Optionally Convertible Redeemable Preference Shareholders in the Company whose consents by way of Affidavits have been obtained and are placed on record, the necessity of convening and holding a meeting to consider and if thought fit, for the approval of the scheme is *dispensed with.*

(iii) **With respect to Non-Cumulative Redeemable Preference Shareholders:**

Since it is represented by the Transferor Company – 3 that there is 1 Non-Cumulative Redeemable Preference Shareholder in the Company whose consent by way of Affidavits has been obtained and is placed on record, the necessity of convening and holding a meeting to consider and if thought fit, for the approval of the scheme is dispensed with.

(iv)**With respect to Compulsorily Convertible Debenture holders:**

Since it is represented by the Transferor Company – 3 that there are 4 Compulsorily Convertible Debenture holders in the Company whose consents by way of Affidavits have been obtained and are placed on record, the necessity of convening and holding a meeting to consider and if thought fit, for the approval of the scheme is dispensed with.

(v) **With respect to Secured Creditors:**

It is represented by the Transferor Company – 3 that there is NIL Secured Creditor and hence the necessity of convening a meeting does not arise.

(vi) **With respect to Unsecured Creditors:**

Since it is represented by the Transferor Company – 3 that there are 4 Unsecured Creditors in the Company whose consents by way of Affidavits have been obtained and are placed on record, the necessity of convening and holding a meeting to consider and if thought fit, for the approval of the scheme is *dispensed with.*

D) IN RELATION TO THE FOURTH TRANSFEROR COMPANY:

(i) **With respect to Equity shareholders:**

Since it is represented by the Transferor Company - 4 that there are 2 Equity Shareholders in the Company whose consents by way of Affidavits have been obtained and are placed on record, the necessity of convening and holding a meeting to consider and if thought fit, for the approval of the scheme is *dispensed with.*

(ii) **With respect to Optionally Convertible Redeemable Preference Shareholders:**

Since it is represented by the Transferor Company - 4 that there is 1 Optionally Convertible Redeemable Preference Shareholders in the Company whose consent by way of

Affidavit has been obtained and is placed on record, the necessity of convening and holding a meeting to consider and if thought fit, for the approval of the scheme is *dispensed with.*

(iii) **With respect to Non-Cumulative Redeemable Preference Shareholders:**

Since it is represented by the Transferor Company - 4 that there is 1 Non-Cumulative Redeemable Preference Shareholder in the Company whose consent by way of Affidavits has been obtained and is placed on record, the necessity of convening and holding a meeting to consider and if thought fit, for the approval of the scheme is dispensed with.

(iv) **With respect to Secured Creditors:**

It is represented by the Transferor Company – 4 that there is NIL Secured Creditor and hence the necessity of convening a meeting does not arise.

(v) **With respect to Unsecured Creditors:**

Since it is represented by the Transferor Company – 4 that there is 1 Unsecured Creditor in the Company whose consent by way of Affidavit has been obtained and is placed on record, the necessity of convening and holding a meeting to consider and if thought fit, for the approval of the scheme is *dispensed with.*

E) IN RELATION TO THE TRANSFEREE COMPANY:

(i) With respect to Equity shareholders:

Meeting of the Equity Shareholders of the Transferee Company is directed to be held on **16.10.2021 at 11:00AM** at the Registered office address of the Transferee Company or through video conferencing or if not convenient at any other suitable place for which prior approval shall be sought from this Tribunal within a period of 7 days from the date of this order and prior to the issue of notices.

(ii) With respect to Optionally Convertible Redeemable Preference Shareholders:

Since it is represented by the Transferee Company that there are 3 Optionally Convertible Redeemable Preference Shareholders in the Company whose consents by way of Affidavits have been obtained and are placed on record, the necessity of convening and holding a meeting to consider and if thought fit, for the approval of the scheme is *dispensed with.*

(iii) With respect to Compulsorily Convertible Debenture holders:

Since it is represented by the Transferee Company that there are 3 Compulsorily Convertible Debenture holders in the Company whose consents by way of Affidavits have been obtained and are placed on record, the necessity of convening and holding a meeting to consider and if thought fit, for the approval of the scheme is dispensed with.

(iv) **With respect to Secured Creditors:**

It is represented by the Transferee Company that there are NIL Secured and hence the necessity of convening a meeting does not arise.

(v) **With respect to Unsecured Creditors:**

Since it is represented by the Transferee Company that there is 1 Unsecured Creditor in the Company whose consent by way of Affidavit has been obtained and is placed on record, the necessity of convening and holding a meeting to consider and if thought fit, for the approval of the scheme is *dispensed with.*

21. The quorum for the meeting of the Equity shareholders of the Transferee company shall be 3 (three).

i) The Chairperson appointed for the above said meeting shall be **S. Vijayaraghavan (Mob:- +91-91767 84184)** and the alternate chairperson appointed for the above said meeting shall be the Managing Director of the Company who has sworn in affidavit on behalf of the respective Applicant Company. The fee of the Chairperson for the aforesaid meeting shall be ₹50,000/- (Rupees Fifty Thousand only) in addition to meeting his incidental expenses.

ii) **Mrs. Geetha Sridhar, PCS (Mob:- +91-95000 71967)** is appointed as a Scrutinizer and would be entitled to fee of ₹25,000 (Rupees Twenty Five Thousand Only) for services in addition to meeting incidental expenses. The

Chairperson(s) will file the reports of the meeting within a week from the date of holding of the above said meetings.

iii) In case the quorum as noted above, for the above meeting of the Applicant Companies is not present at the meeting, then the meeting shall be adjourned by half an hour, and thereafter the person(s) present and voting shall be deemed to constitute the quorum. For the purpose of computing the quorum the valid proxies shall also be considered, if the proxy in the prescribed form, duly signed by the person entitled to attend and vote at the meeting, is filed with the registered office of the applicant companies at least 48 hours before the meeting. The Chairperson and Alternate Chairperson appointed herein along with Scrutinizer shall ensure that the proxy registers are properly maintained. However, every endeavour should be made by the applicant companies to attain at least the quorum fixed, if not more in relation to approval of the scheme.

iv) That individual notices of the above said meetings shall be sent by the Applicant Company through registered post or speed post or through courier or e-mail, 30 days in advance before the scheduled date of the meeting, indicating the day, date, the place and the time as aforesaid, together with a copy of Scheme, copy of explanatory statement, required to be sent under the Companies Act, 2013 and the prescribed form of proxy shall also be sent along and in addition to the above any other documents as may be prescribed under the Act or rules may also be duly sent with the notice.

v) That the Applicant Company shall publish advertisement with a gap of atleast 30 clear days before the aforesaid meetings, indicating the day, date and the place and time as aforesaid, to be published in the English Daily *"Business Standard"* (All India Edition), and *"Makkal Kural" Tamil* (Tamil Nadu Edition) in Vernacular stating the copies of Scheme, the Explanatory Statement required to be furnished pursuant to Section 230 of the Companies Act, 2013 and the form of proxy shall be provided free of charge at the registered office of the respective Applicant Companies.

vi) Voting shall be allowed on the proposed Scheme by voting in person. The Chairperson shall as aforestated be responsible to report the result of the meeting within a period of 3 days of the conclusion of the meeting with details of voting on the proposed scheme.

vii) The companies shall individually send notice to concerned Regional Director, MCA, the Income Tax Authorities, Registrar of Companies Chennai, Official Liquidator, The Reserve Bank of India, as well as other Sectoral regulators who may have significant bearing on the operation of the applicant companies or the Scheme *per se* along with copy of required documents and disclosures required under the provisions of Companies Act, 2013 read with Companies (Compromises, Arrangements, Amalgamations) Rules, 2016.

viii) The Applicant companies shall further furnish copy of the Scheme free of charge within 1 day of any requisition for the Scheme made by every creditor or member of the applicant companies entitled to attend the meetings as aforesaid.

ix) The Authorized Representative of the Applicant Companies shall furnish an affidavit of service of notice of meetings and publication of advertisement and compliance of all directions contained herein at least a week before the proposed meetings.

x) All the aforesaid directions are to be complied with strictly in accordance with the applicable law including forms and formats contained in the Companies (Compromises, Arrangements, Amalgamations) Rules, 2016 as well as the provisions of the Companies Act, 2013 by the Applicants.

22. All the Applications stand **allowed** on the aforesaid terms.

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(ANIL KUMAR B)
MEMBER (TECHNICAL)

-sd-
(R. SUCHARITHA)
MEMBER (JUDICIAL)

Raymond